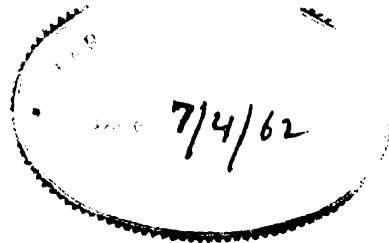


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THE CONSTITUTION (TWELFTH AMENDMENT)
BILL, 1962

(AS INTRODUCED IN LOK SABHA
ON 12TH MARCH, 1962)



**THE CONSTITUTION (TWELFTH AMENDMENT)
BILL, 1962**

(AS INTRODUCED IN LOK SABHA)

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BILL

further to amend the Constitution of India

BE it enacted by Parliament in the Thirteenth Year of the Republic of India as follows:—

1. (1) This Act may be called the Constitution (Twelfth Amendment) Act, 1962. Short title and commencement.

5 (2) It shall be deemed to have come into force on the 20th day of December, 1961.

2. In the First Schedule to the Constitution, under the heading **"THE UNION TERRITORIES"**, after entry 7, the following entry shall be inserted, namely:— Amendment of the First Schedule to the Constitution.

10 "8. Goa, Daman and Diu. The territories which immediately before the twentieth day of December, 1961 were comprised in Goa, Daman and Diu."

3. In article 240 of the Constitution, in clause (1), after entry (c) Amendment of article 240.
15 the following entry shall be inserted, namely:—

"(d) Goa, Daman and Diu."

STATEMENT OF OBJECTS AND REASONS

On the acquisition of the territories of Goa, Daman and Diu with effect from the 20th December, 1961, these territories have, by virtue of sub-clause (c) of clause (3) of article 1 of the Constitution, been comprised within the territory of India from that date and they are being administered as a Union territory by the President through an Administrator in accordance with article 239 of the Constitution. It is, however, considered desirable that Goa, Daman and Diu should be specifically included as a Union territory in the First Schedule to the Constitution. It is also considered that clause (1) of article 240 should be suitably amended to confer power on the President to make regulations for the **peace, progress and good government** of Goa, Daman and Diu, as has been done in the case of Dadra and Nagar Haveli.

The Constitution (Twelfth Amendment) Bill, 1962 seeks to make the above mentioned provisions.

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JAWAHARLAL NEHRU.

FINANCIAL MEMORANDUM

On the acquisition of the territories of Goa, Daman and Diu with effect from the 20th December, 1961, these territories have, by virtue of sub-clause (c) of clause (3) of article 1 of the Constitution, been comprised within the territory of India from that date. The Bill amending the Constitution provides for the inclusion of Goa, Daman and Diu in the First Schedule to the Constitution under the heading "Union Territories".

2. As a result of the reunion of Goa, Daman and Diu with India the receipts and expenditure of the areas in question have been amalgamated with the Consolidated Fund of India. Estimates for the years 1961-62 and 1962-63 have been prepared. It is expected that an expenditure of Rs. 1.58 crores would be incurred during the period 20th December, 1961 to 31st March, 1962 and an expenditure of Rs. 5.28 crores would be incurred during the year 1962-63. Receipts have been estimated at Rs. 1.39 crores for the period 20th December, 1961 to 31st March, 1962 and Rs. 5.01 crores for the year 1962-63.

3. It has not been possible so far to ascertain the assets and liabilities left by the Portuguese Administration. These are being worked out.

ANNEXURE

EXTRACTS FROM THE CONSTITUTION OF INDIA

FIRST SCHEDULE

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II. THE UNION TERRITORIES

<i>Name</i>	<i>Extent</i>
1. Delhi .	The territory which immediately before the commencement of this Constitution was comprised in the Chief Commissioner's Province of Delhi.
2. Himachal Pradesh .	The territories which immediately before the commencement of this Constitution were being administered as if they were Chief Commissioners' Provinces under the names of Himachal Pradesh and Bilaspur.
3. Manipur	The territory which immediately before the commencement of this Constitution was being administered as if it were a Chief Commissioner's Province under the name of Manipur.
4. Tripura	The territory which immediately before the commencement of this Constitution was being administered as if it were a Chief Commissioner's Province under the name of Tripura.
5. The Andaman and Nicobar Islands.	The territory which immediately before the commencement of this Constitution was comprised in the Chief Commissioner's Province of the Andaman and Nicobar Islands.
6. The Laccadive, Minicoy and Amindivi Islands.	The territory specified in section 6 of the States Reorganisation Act, 1956.
7. Dadra and Nagar Haveli	The territory which immediately before the eleventh day of August, 1961 was comprised in Free Dadra and Nagar Haveli.

* * * * *

240. (1) The President may make regulations for the progress and good government of the Union territory of—

- (a) the Andaman and Nicobar Islands;
- (b) the Laccadive, Minicoy and Amindivi Islands;
- (c) Dadra and Nagar Haveli.

peace, Power of
President to
make regu-
lations for
certain
Union
territories.

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further to amend the Constitution of India.

(Shri Jawaharlal Nehru, Minister of External Affairs.)